



CHAPTER 73.

An Act to amend the Naval Discipline Act.

A.D. 1915.

[29th July 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) In paragraph (a) of subsection (3) of section fifty-six of the Naval Discipline Act, which relates to authorities having power to try offences, for the words “when the tender is absent from the ship, by the officer in command of the tender” there shall be substituted the words “in the case of a single tender absent from the ship, by the officer in command of such tender, and in the case of two or more tenders absent from the ship in company or acting together, by the officer in immediate command of such tenders.”

Amendment of s. 56 of the Naval Discipline Act.

(2) In paragraph (d) of the same subsection after the words “naval barracks” there shall be inserted “be exercised by.”

2. The following section shall be inserted after section fifty-seven of the Naval Discipline Act :—

Trial of officers for disciplinary offences in time of war.

“57A.—(1) Where any officer borne on the books of any of His Majesty's ships in commission is in time of war alleged to have been guilty of a disciplinary offence, that is to say, a breach of section seventeen, eighteen, nineteen, twenty-two, twenty-three, twenty-seven, or forty-three of this Act, the officer having power to order a court martial may, if he considers that the offence is of such a character as not to necessitate trial by court martial, in lieu of ordering a court martial, order a disciplinary court constituted as herein-after mentioned.

(2) A disciplinary court shall be composed of not less than three nor more than five officers, of whom one shall be a commander or of higher rank.

(3) A disciplinary court shall have power to impose any punishment inferior to detention in the scale herein-before contained, but no greater punishment.

A.D. 1915. — (4) The Admiralty may from time to time frame general orders for regulating the assembling, constitution and procedure and practice of disciplinary courts under this section, and may by those regulations apply, with the necessary modifications, to disciplinary courts the provisions of sections sixty-two to sixty-four and sections sixty-six to sixty-nine of this Act relating to courts martial, and the regulations shall provide for evidence being taken on oath and empower the court to administer oaths for that purpose."

Amendment of
s. 90 of Naval
Discipline Act.

3. Section ninety of the Naval Discipline Act shall extend to vessels in His Majesty's service in time of war other than hired vessels, and accordingly for the words "With respect to hired vessels in His Majesty's service in time of war" there shall be substituted the words "With respect to vessels in His Majesty's service in time of war, whether belonging to His Majesty or not, which are not wholly manned by naval ratings, "but," and the word "hired" shall be omitted wherever it occurs in that section.

Liability of
seamen, &c.
for main-
tenance of
wives and
children.

4. The following section shall be inserted after section ninety-eight of the Naval Discipline Act:—

"98A.—(1) A person subject to this Act shall be liable to contribute to the maintenance of his wife and of his children, and also to the maintenance of any bastard child of which he may be proved to be the father, to the same extent as if he were not so subject; but execution in respect of any such liability or of any order or decree in respect of such maintenance shall not issue against his person, pay, arms, ammunition, equipments, instruments, or clothing; nor shall he be liable to be punished for the offence of deserting or neglecting to maintain his wife or family, or any member thereof, or of leaving her or them chargeable to any union, parish, or place.

(2) When any order or decree is made under any Act or at common law for payment by a man who is or subsequently becomes subject to this Act either of the cost of the maintenance of his wife or child, or of any bastard child of whom he is the putative father, or of the cost of any relief given to his wife or child by way of loan, a copy of such order or decree shall be sent to the Admiralty or any officer deputed by them for the purpose, and in the case—

(a) of such order or decree being so sent; or

(b) of it appearing to the satisfaction of the Admiralty or any officer deputed by them for the purpose that a person subject to this Act has deserted or left in destitute circumstances, without reasonable cause, his wife or any of his legitimate children under fourteen years of age,

the Admiralty or officer shall order to be deducted from the daily pay of the person so subject to this Act, and to be appropriated in liquidation of the sum adjudged to be paid by such

order or decree, or towards the maintenance of the wife or children of the person, as the case may be, in such manner as the Admiralty or officer may think fit, a portion of such daily pay not exceeding—

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where the person is a petty officer or a non-commissioned officer who is not below the rank of sergeant—in respect of a wife or children, one shilling, and in respect of a bastard child, sixpence;

in the case of any other person subject to this Act—in respect of a wife or children, sixpence, and in respect of a bastard child, fourpence:

Provided that no such deductions from pay in liquidation of the sum adjudged to be paid by such order or decree as aforesaid shall be ordered unless the Admiralty, or officer deputed by them, are satisfied that the person against whom the order or decree was made has had a reasonable opportunity of appearing to defend the case before the court by which the order or decree was made, and a certificate, purporting to be a certificate of the commanding officer of the ship on which he was or is serving, or on the books of which he was or is borne, that the person has been prevented by the requirements of the service from attending at a hearing of any such case shall be evidence of the fact unless the contrary is proved.

(3) Where a proceeding under any Act or at common law is instituted against a person subject to this Act for the purpose of enforcing against him any such liability as above in this section mentioned, the process may be served on the commanding officer of the ship on which he is serving, or on the books of which such person is borne, or where, by reason of the ship being at sea or otherwise, it is impracticable to serve the process on such commanding officer, the process may be served by being left with the Admiralty for transmission to such commanding officer, but such service shall not be valid unless there is left therewith in the hands of such commanding officer or Admiralty a sum of money (to be adjudged as costs incurred in obtaining the order or decree, if made against the person on whom the process is issued) sufficient to enable him to attend the hearing of the case and to return to his ship or quarters, and such sum may be expended by the commanding officer for that purpose, and no process whatever under any Act or common law in any proceeding in this section mentioned shall be valid against a person subject to this Act if served after such person is under orders for service on a foreign station.

The production of a certificate of the receipt of the process purporting to be signed by such commanding officer as aforesaid shall be evidence that the process has been duly served unless the contrary is proved.

Where, by an order or decree sent to the Admiralty or officer in accordance with subsection (2) of this section, the person against whom the order or decree is made is adjudged

A.D. 1915. — to pay as costs incurred in obtaining the order or decree any sum so left with the process as aforesaid, the Admiralty may cause a sum equal to the sum so left to be paid in liquidation of the sum so adjudged to be paid as costs, and the amount so paid by the Admiralty shall be a public debt from the person against whom the order or decree was made, and, without prejudice to any other method of recovery, may be recovered by deductions from his daily pay, in addition to those mentioned in subsection (2) of this section.

(4) This section shall not apply to persons subject to this Act where such persons are officers."

Printing and
construction of
Naval Disci-
pline Act.

5.—(1) Every enactment and word which is directed by this Act to be substituted for or added to any portion of the Naval Discipline Act shall form part of that Act in the place assigned to it by this Act, and the Naval Discipline Act and all Acts which refer thereto shall, after the commencement of this Act, be construed as if that enactment or word had been originally enacted in the Naval Discipline Act in the place so assigned, and, where it is substituted for another enactment or word, had been so enacted in lieu of that enactment or word, and as if the Naval Discipline Act had been enacted with the omission of any enactment or word which is directed by this Act to be omitted from that Act, and the expression "this Act" in the Naval Discipline Act shall be construed accordingly.

(2) A copy of the Naval Discipline Act with every such enactment and word inserted in the place so assigned, and with the omission of any portion of that Act directed by this Act to be omitted from that Act, shall be prepared and certified by the Clerk of the Parliaments and deposited with the rolls of Parliament, and His Majesty's printers shall print in accordance with the copy so certified all copies of the Naval Discipline Act which are printed after the commencement of this Act.

Short title
and com-
mencement.

6. This Act may be cited as the Naval Discipline (No. 2) Act, 1915.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.